SALE AND PURCHASE AGREEMENT FOR HOUSE/CONSTRUCTION WORK
(for Resort Real Estate under the Project of Thung Lung Dai Duong Tourism Complex)
No.: NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN

Between

CONG TY TNHH DELTA-VALLEY BINH THUAN

And

MR./MRS. : THACH NGUYEN PHONG

MR./MRS. : NGUYEN LE KIM NGAN

PRODUCT CODE : NWP.5.5-2.28

TABLE OF CONTENTS

ARTICLE 1. INFORMATION ON THE RESORT REAL ESTATE.....3
ARTICLE 2. SALE PRICE OF THE RESORT REAL ESTATE.....4
ARTICLE 3. PAYMENT METHOD AND DEADLINE 4
ARTICLE 4. QUALITY OF THE RESORT REAL ESTATE CONSTRUCTION.....5
ARTICLE 5. DELIVERY OF THE RESORT REAL ESTATE 6
ARTICLE 6. WARRANTY OF THE RESORT REAL ESTATE 8
ARTICLE 7. TRANSFER OF RIGHTS AND OBLIGATIONS.....10
ARTICLE 8. AGREEMENTS ON COMMON OWNERSHIP WITHIN THE PROJECT AND SEPARATE
OWNERSHIP, OPERATIONAL MANAGEMENT.....13
ARTICLE 9. RIGHTS AND OBLIGATIONS OF THE SELLER.....14
ARTICLE 10. RIGHTS AND OBLIGATIONS OF THE BUYER.....17
ARTICLE 11. LIABILITY OF BOTH PARTIES AND HANDLING OF CONTRACT BREACHES.21
ARTICLE 12. WARRANTIES BY THE PARTIES.....25
ARTICLE 13. FORCE MAJEURE.....26
ARTICLE 14. TERMINATION OF THE AGREEMENT.....27
ARTICLE 15. NOTICES.....28
ARTICLE 16. TAXES AND FEES, CHARGES PAYABLE.....29
ARTICLE 17. OTHER AGREEMENTS.....29
ARTICLE 18. DISPUTE RESOLUTION.....30
ARTICLE 19. EFFECTIVE DATE OF THE AGREEMENT 30

SOCIALIST REPUBLIC OF VIETNAM
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No.: NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN

June 10, 2024

- Pursuant to the Civil Code No. 91/2015/QH13 dated 24 November 2015;
- Pursuant to the Law on Real Estate Business No. 66/2014/QH13 dated 25 November 2014;
- Pursuant to the Law on Tourism No. 09/2017/QH14 dated 19 June 2017;
- Pursuant to Decree No. 02/2022/ND-CP dated 06 January 2022 of the Government detailing the implementation of a number of articles of the Law on Real Estate Business;
- The amendments, supplements and replacements of the above documents at the respective times, and other relevant legal documents;
- Pursuant to the legal documents and project dossiers of the resort real estate:
+ Pursuant to Decision No. 5185/QD-UBND dated 16 October 2023 of the Phan Thiet City People's Committee;
+ Pursuant to Decision No. 934/QD-UBND dated 16 April 2019 of the Binh Thuan Provincial People's Committee on the investment policy decision.

The Parties are:

I. SELLER OF HOUSE/CONSTRUCTION WORK (hereinafter referred to as the "Seller"):

Enterprise name : **DELTA-VALLEY BINH THUAN COMPANY LIMITED**

Business registration certificate : 3400573917
enterprise number

Legal representative/authorized person : Mr./Mrs. PHUNG HAI DANG
Position: Project Executive Director

Under authorization document No. : 07/2024-UQ-DVBT dated 29 December 2023

Citizen identification card/ Identity card number : 001079010072 issued on 10 February 2020 at the Department of Police for Administrative Management of Social Order

Head office address : Hon Gio - Thuan Quy Street, Tien Hoa Hamlet, Tien Thanh Commune, Phan Thiet City, Binh Thuan Province

Contact address : 65 Nguyen Du Street, Ben Nghe Ward, District 1, Ho Chi Minh City, Vietnam

Telephone : 1900636666

Bank account number : 3171157970066 at Military Commercial Joint Stock Bank
(MB) - Bac Sai Gon Branch

Tax code : 3400573917

II. BUYER OF HOUSE/CONSTRUCTION WORK (hereinafter referred to as the "Buyer"):

Mr./Mrs. : **THACH NGUYEN PHONG**

ID/Passport/Citizen ID No. : 079093015131 issued on : 27 November 2021 at : Department of Police for Administrative Management of Social Order

Expiry date : 05 April 2033

Registered residence : 47/102/2A Tran Quoc Toan Street, Vo Thi Sau Ward, District 3, Ho Chi Minh City

Contact address : Apartment BPA-10.03, Botanica Premier Apartment Complex, 108 Hong Ha Street, Ward 2, Tan Binh District, Ho Chi Minh City

Contact telephone : 0909.246.113

Email : thach.nguyenphong@gmail.com

Mr./Mrs. : **NGUYEN LE KIM NGAN**

ID/Passport/Citizen ID No. : 079195000613 issued on: 23 January 2022 at: Department of Police for Administrative Management of Social Order

Expiry date : 12 January 2035

Registered residence : 3/3C Yen The, Ward 02, Tan Binh District, Ho Chi Minh City

Contact address : Apartment BPA-10.03, Botanica Premier Apartment Complex, 108 Hong Ha Street, Ward 2, Tan Binh District, Ho Chi Minh City

Telephone : 0938.986.669

Email : juliaheiz.12@gmail.com

The Seller and the Buyer hereinafter collectively referred to as "the Parties" or "Both Parties" and individually as a "Party", as the context requires.

We, the Parties, agree to enter into this sale and purchase agreement for house/construction work (for Resort Real Estate under the Project) (hereinafter referred to as the "Agreement") with the following terms:

ARTICLE 1. INFORMATION ON THE RESORT REAL ESTATE

1.1. Location of the Resort Real Estate:
- Zone : 5
- Row : 2
- Serial number : 28

1.2. Information on planning related to the Resort Real Estate: as specified in Decision No. 5185/QD-UBND dated 16 October 2023 of the Phan Thiet City People's Committee.

1.3. Scale of the Resort Real Estate: 02 floors (including 01 ground floor and 01 upper floor)
(a) Total Construction Floor Area: 174.70 m2;
(b) Total Land Use Area: 230.30 m2, of which:
- Private use: 230.30 m2;
- Common use (if any): 0 m2;
- Land use purpose: Commercial and service land;
- Origin of land use: According to the Project Legal Dossier as approved.

1.4. Project legal information:
- Business registration certificate No.: 3400573917 issued by the Department of Planning and Investment of Binh Thuan Province;
- Decision No. 934/QD-UBND dated 16 April 2019 of the Binh Thuan Provincial People's Committee on the investment policy decision.

1.5. Characteristics, nature, functional use, quality of the Resort Real Estate:
- Purpose of use of the Resort Real Estate: The Buyer purchases the Resort Real Estate to use in accordance with (i) the purpose of use approved by the competent State authority, (ii) the provisions of law and (iii) the manner of use agreed by the Parties and stipulated in this Agreement and/or other agreements between the Parties;
- Year of completion of construction: expected 2024
- Type of Resort Real Estate: Semi-detached villa.

1.6. Current status of infrastructure and services related to the Resort Real Estate:
Technical infrastructure completed

1.7. Pursuant to current legal regulations, the Seller's sale of construction works formed in the future as resort real estate does not fall under the cases of (i) requiring guarantee from a commercial bank with sufficient capacity and (ii) requiring approval on the construction works formed in the future being eligible for business from the local Department of Construction.

1.8. Restrictions on ownership rights, usage rights of the Resort Real Estate (if any)

1.9. Other information: The location drawing and the floor plan design drawing of the Resort Real Estate: are determined according to Appendix 2 attached to this Agreement.

ARTICLE 2. SALE PRICE OF THE RESORT REAL ESTATE

2.1. The Sale Price of the Resort Real Estate is: 11.906.428.652 VND (In words: Eleven billion nine hundred six million four hundred twenty-eight thousand six hundred fifty-two dong only).

The unit price of the Resort Real Estate is determined in Appendix 5 attached to this Agreement.

The Sale Price of the Resort Real Estate already includes land tax and value added tax

2.2. The Sale Price of the Resort Real Estate stipulated in Article 2.1 of this Agreement does not include the following:
(a) Registration fee, fees and charges according to legal provisions related to the procedures for issuance of the Certificate to the Buyer. These registration fees, fees and charges shall be borne by the Buyer;
(b) Costs of connection, installation of equipment and use of services for the Resort Real Estate including: gas supply service, postal, telecommunications, television and other services that the Buyer uses for the Resort Real Estate. These costs shall be paid directly by the Buyer to the service providers;
(c) Monthly Operation Management Fee of the Resort Real Estate Area; from the date of handover of the Resort Real Estate to the Buyer as agreed in Article 5 of this Agreement, the Buyer shall be responsible for payment of the Operation Management Fee of the Resort Real Estate Area as agreed in this Agreement;
(d) Maintenance fund (if any);
(e) Other financial obligations related to the Resort Real Estate as prescribed by law; all types of fees, costs reasonably requested by the Seller including but not limited to repair costs of project items; types of service fees and/or services provided for utilities. For clarity, the Buyer is responsible for these costs and expenses arising from the Handover Date, unless otherwise agreed by the Parties; and
2.3. The Parties agree that from the Handover Date of the Resort Real Estate and throughout the period of ownership and use of the purchased Resort Real Estate, the Buyer must pay financial obligations as prescribed by law, pay the Operation Management Fee of the Resort Real Estate Area and other service fees arising from the use of utilities such as: urban fees, electricity, water, telephone, cable television,... to the service providers.

2.4. Other agreed contents are stipulated in Appendix 5 attached to this Agreement.

ARTICLE 3. PAYMENT METHOD AND DEADLINE

3.1. Payment method: payment in Vietnamese dong, by cash or through banks in accordance with the law.

3.2. Payment deadline: stipulated in Appendix 5 attached to this Agreement.

3.3. For clarification,

(a) Payments under this Agreement shall be made in Vietnamese dong, in the form of cash deposit at the cashier departments at the Seller's official transaction locations or by transfer to the Seller's account as stated at the beginning of this Agreement or to another account notified in writing by the Seller and credited to the Seller's bank account with transfer fees and similar fees borne by the Buyer. In case the Buyer is a domestic organization, payment must be made by bank transfer.

(b) The Buyer shall be deemed to have fulfilled its payment obligation when the Seller issues a receipt for the fully received payment or the Seller's bank account is credited with the sum paid by the Buyer. For clarity, in all cases, the issuance and delivery of the value added tax invoice to the Buyer does not mean that the Buyer has fulfilled its payment obligation to the Seller.

(c) Payment shall only be considered valid when the Buyer complies with the above provisions. The Buyer's payment in cash or by transfer to any other organization/individual (including payment in cash or transfer to the Seller's staff to pay on behalf) shall not be considered valid and the Seller shall bear no responsibility related to such payments.

(d) The principle for determining the time at which the Buyer completes this payment obligation shall remain in effect even when the Agreement is assigned, transferred or terminated for any reason and the Buyer still has to continue performing its payment obligations arising from such assignment, transfer or termination.

(e) In case additional information or support is needed regarding payment, the Buyer may contact the Seller via the Customer Care hotline 1900 636 666. The hotline number will be updated by the Seller in payment notices sent to the Buyer when there are changes.

3.4. Other agreed contents: stipulated in Appendix 5 attached to this Agreement.

ARTICLE 4. QUALITY OF THE RESORT REAL ESTATE CONSTRUCTION

4.1. The Seller commits to ensure the quality of the Resort Real Estate construction specified in Article 1 of this Agreement in accordance with the approved design and to use correct (or equivalent) construction materials of the Resort Real Estate as agreed by the Parties in this Agreement.

4.2. Construction progress: The Parties agree that the Seller is responsible for constructing the Resort Real Estate in accordance with the following agreed schedule:
Handover stage: expected June 2024;

4.3. The Seller shall carry out the construction of technical infrastructure and social infrastructure to serve the usage needs of the Buyer within the Project in accordance with the approved planning, design, contents and progress of the Project and ensure quality in accordance with construction norms and standards prescribed by the State.

4.4. The Seller shall complete the construction of infrastructure works serving the essential usage needs of the Buyer within the Project according to the Project contents and the approved progress before the Seller hands over the Resort Real Estate to the Buyer, including: traffic road system; public lighting system, household electricity; water supply and wastewater systems; social infrastructure works (if any).

4.5. The Seller is responsible for inspecting and supervising the construction of the Resort Real Estate to ensure construction quality, architecture and technical aspects in accordance with current standards.

ARTICLE 5. DELIVERY OF THE RESORT REAL ESTATE

5.1. Conditions for delivery of the Resort Real Estate:
(a) The Seller has completed the construction of the Resort Real Estate according to the approved design, using the equipment and materials specified in Appendix 3 attached to this Agreement, except as agreed in Article 9.1(d) and (g) of this Agreement;
(b) The Actual Total Land Use Area, Actual Total Floor Area of the Resort Real Estate differ suitably according to the rate prescribed in Article 10.1(g) and (k) of this Agreement; and
(c) The Buyer has timely and fully paid (i) 95% (ninety-five percent) of the Sale Price of the Resort Real Estate excluding VAT; (ii) 100% of VAT; and (iii) any other due payments under the Buyer's payment obligations as stipulated in this Agreement.

5.2. The Seller shall hand over the Resort Real Estate to the Buyer in: June 2024
("Estimated Handover Date").

ARTICLE 13. FORCE MAJEURE

13.1. The Parties agree that one of the following cases shall be considered a Force Majeure Event:
(a) Due to war or due to natural disasters or due to changes in State legal policies;
(b) Due to the necessity to comply with decisions of competent State agencies or other cases as prescribed by law;
(c) Due to accidents, illnesses requiring emergency treatment at medical facilities.

13.2. Pure financial difficulties shall not be considered a Force Majeure Event.

13.3. When one of the Force Majeure Events as agreed in Clause 1 of this Article occurs, the Party affected by the Force Majeure Event must notify the other Party in writing or directly within 15 (fifteen) days from the date of occurrence of the Force Majeure Event, accompanied by documents proving the reason for the force majeure (if any). The Party affected by the Force Majeure Event failing to perform its obligations shall not be considered in breach of the Agreement and this shall not be a basis for the other Party to terminate this Agreement.

13.4. The performance of obligations under the Agreement by the Parties shall be suspended during the occurrence of the Force Majeure Event. The Parties shall resume performance of their obligations after the Force Majeure Event ceases, except as provided in Clause 1 of Article 14 of this Agreement.

13.5. For clarity, the exemption from liability due to a Force Majeure Event under this Article shall not apply to obligations of a Party to pay money to the other Party under this Agreement.

13.6. In case of a Force Majeure Event, the term for performance of the Agreement shall be extended by the duration of the Force Majeure Event during which the affected Party cannot perform its obligations under the Agreement, and this shall be confirmed in writing by the Parties.

ARTICLE 14. TERMINATION OF THE AGREEMENT

14.1. Cases of termination of the Agreement:
(a) The Parties agree to terminate the Agreement. In such case, the Parties shall prepare a written agreement specifying the conditions and timing of termination;
(b) The Buyer delays payment of the Sale Price of the Resort Real Estate as agreed in Clause 1 Article 11 of this Agreement;
(c) The Seller delays the handover of the Resort Real Estate as agreed in Article 5 of this Agreement;
(d) In case the Party affected by the Force Majeure Event is unable to overcome it to continue performing its obligations within 90 (ninety) days from the date of occurrence of the Force Majeure Event, and the Parties do not have another agreement, then either Party shall have the right to unilaterally terminate this Agreement after notifying the other Party in writing at least 07 (seven) days in advance and such termination shall not be considered a breach of the Agreement.

14.2. Handling of consequences due to termination of the Agreement under Clause 1 of this Article as follows:
(a) If this Agreement is terminated under Article 14.1(a), the consequences of termination shall be agreed in writing by the Parties;
(b) If this Agreement is terminated under Article 14.1(b), the consequences of termination shall be handled according to the provisions of Article 11.1 of this Agreement;
(c) If this Agreement is terminated under Article 14.1(c), the consequences of termination shall be handled according to the provisions of Article 11.2 of this Agreement;
(d) If this Agreement is terminated under Article 14.1(d), the Parties agree that the Seller shall refund the amounts paid by the Buyer (excluding any accrued late payment penalties) to the Buyer up to the termination date of the Agreement without any interest, penalty or compensation for damages.

14.3. Except as otherwise provided in this Agreement, the Parties agree that no Party shall have the right to unilaterally terminate this Agreement for any reason.

ARTICLE 15. NOTICES

15.1. Addresses for notices between the Parties: as per the contact addresses of each Party as stated at the beginning of this Agreement.

15.2. Form of notices between the Parties: all notices, requests, complaints or correspondence sent by one Party to the other under this Agreement must be in writing/email and sent to the other Party.

15.3. In case the Buyer consists of 02 (two) persons or 02 (two) subjects or more, any reference to the Buyer in this Agreement means reference to all persons/subjects of the Buyer. For convenience, the persons belonging to the Buyer here agree to authorize the first named person/subject of the Buyer to be the authorized representative to receive notices, requests, complaints or correspondence with the Seller related to this Agreement.

15.4. Any notice, request, information or complaint arising in relation to this Agreement must be in writing. The Parties agree that notices, requests and complaints shall be deemed received if sent to the correct address, correct recipient name, correct form of notice as agreed in Clauses 1, 2 and 3 of this Article and within the following times:
(a) On the date of delivery in case of hand-delivered letter with recipient's signature;
(b) On the date the sender receives a successful fax transmission notice in case of fax;
(c) On the second day after the postmark date in case of express mail;
(d) On the date of sending the email immediately after successful sending in case of email. In this case, if the date of receipt is not on a Working Day, then the notices, requests, complaints or correspondence shall be deemed received on the next Working Day following that.

15.5. The Parties must notify each other in writing if there is any proposed change regarding the address, form and name of the recipient of notices; if after changes to (address, form, name of recipient of notices as agreed by the Parties, ...) the Party that has changed does not notify the other Party, then the sending Party shall not be responsible for the changed Party not receiving the notices.

ARTICLE 16. TAXES AND FEES, CHARGES PAYABLE

16.1. The Seller is responsible for paying financial obligations of the Seller to the State as prescribed by law.

16.2. The Buyer is responsible for paying all taxes, fees and charges related to the transfer of ownership of the Resort Real Estate, including but not limited to fees and charges as prescribed by law. If the Buyer requests notarization of the Agreement, the Buyer shall be responsible for paying all costs for notarization.

16.3. The Buyer is responsible for payment of the Operation Management Fee as stipulated in Appendix 6 of this Agreement.

16.4. The Buyer must pay the maintenance fee (if any), registration fee, taxes, charges and fees related to issuance of the Certificate as prescribed by law when the Seller carries out procedures to issue the Certificate to the Buyer and during the ownership and use of the Resort Real Estate from the date of handover.

16.5. The Buyer is responsible for paying taxes and types of fees, charges and costs (if any) as prescribed to the State when performing transfer/assignment/gift of this Agreement or the purchased Resort Real Estate to others.

16.6. The Buyer is obliged to make payments of other taxes, fees and charges as stipulated in Article 2, Appendix 5 and Appendix 6 attached to this Agreement.

ARTICLE 17. OTHER AGREEMENTS

17.1. This Agreement and all appendices attached hereto constitute the entire agreement between the Parties and supersede all prior agreements or memoranda, whether oral or written, between the Parties relating to the subject matter of this Agreement. All appendices to this Agreement shall amend, supplement and form an integral part of this Agreement.

17.2. This Agreement is construed, interpreted and governed by the laws of Vietnam.

ARTICLE 18. DISPUTE RESOLUTION

In case of any dispute arising out of or in connection with this Agreement ("Dispute"), the Parties agree to conduct mediation through one (01) mediator at the Vietnam Mediation Center (VMC) under the Vietnam International Arbitration Center in accordance with the Mediation Rules of the said Center within a maximum period of 90 (ninety) days. The Parties shall be bound by the dispute resolution agreement reached from the mediation process.

If such mediation is not completed within the above period and the Parties do not conclude mediation, either Party shall have the right to file a lawsuit at a competent court for resolution in accordance with the law.

ARTICLE 19. EFFECTIVE DATE OF THE AGREEMENT

19.1. This Agreement shall come into effect from the date it is validly signed by the Parties, and shall expire when the Parties have fulfilled their obligations under this Agreement, unless otherwise agreed.

19.2. This Agreement consists of 19 (nineteen) Articles, with 30 (thirty) pages, made into 03 (three) originals and have equal legal value, the Buyer keeps 01 (one) original, the Seller keeps 02 (two) originals for storage, for tax, fee and charge procedures as prescribed by law and for issuance of the Certificate to the Buyer.

19.3. Attached to this Agreement is 01 approved floor plan drawing of the Resort Real Estate referred to in Article 1 of this Agreement, 01 set of Rules of the Resort Real Estate Area, 01 list of construction materials of the Resort Real Estate.

19.4. The appendices attached to this Agreement and amendments and supplements agreed by the Parties form an inseparable part of this Agreement and are effective for both Parties.

19.5. In case the Parties agree to change the contents of this Agreement, such changes must be made in writing and signed by both Parties.

BUYER	REPRESENTATIVE OF THE SELLER
[signed] THACH NGUYEN PHONG	PHUNG HAI DANG
[signed] NGUYEN LE KIM NGAN	Project Executive Director

ANNEX 1

DEFINITION OF TERMS

(Attached to the Sale and Purchase Agreement for house/construction works No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 10 January 2024)

1. Unless the context otherwise requires, the capitalized terms below in this Agreement have the following meanings:

"Resort Property" : means including resort villas, shophouses and other resort properties belonging to the Project constructed by the Investor for sale/long-term lease, details as stipulated in Article 1 of this Agreement.

"Handover Record" : means the minutes prepared on the Handover Date for the purpose of handing over the Resort Property. The Handover Record shall record the Total Usable Floor Area and the Total Land Usable Area actually used to calculate the Sale Price of the Resort Property and to confirm the condition, state, and record other necessary contents related to the handover of the Resort Property.

"Project" : means the real estate project of the Investor named To Hop Khu du lich Thung Lung Dai Duong located at Tien Thanh Commune, Phan Thiet City.

"Resort Property Sale Price" : means the total purchase price for each Resort Property as provided in Article 2 and Annex 5 attached to this Agreement.

"Certificate" : means the Certificate of land use rights, ownership of residential houses and other assets attached to the land for the Resort Property issued to the Purchaser by the competent State authority in accordance with the law.

"Agreement" : means this Sale and Purchase Agreement for the Resort Property and all appendices attached thereto as well as any written amendments and supplements to this Agreement made and signed by the Parties in the course of performing this Agreement.

"Resort Property Area" : means the area comprising the Resort Properties of the Project.

"Common Area" : means the common area of the Resort Property Area and the common area of the Project as stipulated in Annex 4 of this Agreement which the Purchaser/occupants of the Resort Property and the Seller shall use in common in accordance with this Agreement.

"Private Area" : means the area of the Project that is the private property of the Purchaser under this Agreement and/or the private property of the Seller, as the context may require.

"Operation Management Fee" : means the fee that the owner or any person using the Resort Property must pay for the management and operation services of the Resort Property Area as stipulated in Annex 6 attached to this Agreement, including but not limited to related costs to ensure the normal operation and/or functioning of the Resort Property Area as prescribed and applied by the Investor appropriately depending on the time and the actual operation of the Resort Property Area.

"Handover Date" : means the date on which the Resort Property is actually handed over to the Purchaser as stipulated in Article 5 of this Agreement.

"Estimated Handover Date" : means the date on which the Seller is expected to hand over the Resort Property to the Purchaser as provided in Article 5 of this Agreement.

"Working Day" : means a calendar day excluding Saturdays, Sundays, and public holidays and Tet holidays as prescribed by the law of Vietnam.

"Resort Property Rules" : means all rules and regulations that the Purchaser and/or occupants in the Resort Property Area must comply with and observe relating to the use of the Resort Property, the Common Area, and utility works during the management and use of the Resort Property issued by the Seller, the management and operation unit of the Resort Property Area or any party designated/authorized by the Seller.

"Force Majeure Event" : means an event that occurs objectively which any Party to this Agreement could not foresee and could not prevent even after having applied all necessary and reasonably practicable measures. Cases considered force majeure events are provided for in Article 13 of this Agreement.

"Credit Institution" : means a credit institution lawfully established and operating in Vietnam that receives the collateral of assets/rights under the Agreement from the Purchaser.

"Total Gross Floor Area" : means the total floor area of all levels, including basements, semi-basements, mezzanines, technical floors, attics and stair towers. The floor area of a floor is the gross floor area of that floor, including enclosing walls (or the portion of common wall belonging to the house) and the footprint area of loggias, balconies, staircases, elevator shafts, technical shafts and flues.

The Total Gross Floor Area stipulated in Article 1.3.(a) of the Agreement is a provisional area and will be determined precisely when actual measurement is carried out on the Handover Date, as recorded in the Handover Record.

"Total Usable Floor Area" : Total usable floor area of the Resort Property: 175,00 m2, is the total usable floor plate area of the floors (excluding roof level) of the Resort Property measured in square metres (m2) and rounded to one decimal place. Accordingly, the Total Usable Floor Area includes the area measured from the outer face of enclosing walls of all floors (except the roof level), the ground-level porch area with structural columns and roof covering, the area of technical shafts, roof/covered drying terrace area, balcony area. The Total Usable Floor Area in this clause is provisional and shall be determined precisely when actual measurement is carried out on the Handover Date, as recorded in the Handover Record. For the avoidance of doubt, the Total Usable Floor Area does not include the area of ancillary works such as swimming pool area, garden area.

"Total Land Usable Area" : means the entire land area within the boundary of the resort property measured in square metres (m2) and rounded to one decimal place. The Total Land Usable Area in this clause is provisional and will be determined precisely when actual measurement is carried out on the Handover Date, as recorded in the Handover Record.

The Total Land Usable Area as stipulated in Article 1 attached to this Agreement.

2. In this Agreement, unless the context requires otherwise:
(i) words in the plural include the singular and vice versa;
(ii) words denoting a gender shall include all genders;
(iii) words such as "other", "including" and "in particular" do not limit the generality of any word preceding them and shall not be construed as limited to the same category as the word preceding when a wider meaning is possible;
(iv) references to a document shall include that document as supplemented, amended, replaced or updated from time to time;
(v) headings or titles are for convenience of reference only and not intended to interpret or construe the meaning of this Agreement;
(vi) any reference to Articles and Annexes are references to the Articles and Annexes of this Agreement; and
(vii) references to a person or a third party shall be construed as references to an individual or a legal entity established under any form together with their successors or permitted assigns.

BUYER	BUYER	REPRESENTATIVE OF THE SELLER
[signed]	[signed]	[signed]
Nguyen Le Kim Ngan	Thach Nguyen Phong	PHUNG HAI DANG Project Executive Director

ANNEX 2

LOCATION DRAWING AND FLOOR PLAN DESIGN DRAWINGS OF THE RESORT PROPERTY

(Attached to the Sale and Purchase Agreement for house/construction works No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 10 January 2024)

Location drawing and floor plan design drawings of the Resort Property:

[Attached document]

* Note:

1. Detailed design, overall design, overview, specific location of the Resort Property are set out as drawings in this Annex. For the avoidance of doubt, information regarding the location of the Resort Property may be changed by decision of the competent State authority.

2. The Seller has made its best and highest efforts to complete this information pack. However, the documents are for reference only; official information shall be based on the provisions of the Agreement. The Parties agree and accept that the actual Resort Property handed over to the Purchaser may differ from these drawings. Such differences shall not be grounds for any Party to unilaterally terminate/cancel the Agreement, refuse to hand over or accept the handover of the Resort Property (except where the deviation exceeds the ratio as prescribed in Article 10.1 (g) of the Agreement) or cause any breach of the Agreement on the basis that a difference has occurred.

BUYER	REPRESENTATIVE OF THE SELLER
[signed]	[signed]
THACH NGUYEN PHONG	PHUNG HAI DANG Project Executive Director

APPENDIX 3

LIST OF MATERIALS AND EQUIPMENT SUPPLIED FOR RESORT PROPERTY

(Attached to Sale and Purchase Contract for house/construction works No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 01 February 2024)

PROJECT: RESORT COMPLEX THUNG LUNG DAI DUONG

Pursuant to Sale and Purchase Contract for house/construction works No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 01 February 2024 between DELTA - VALLEY BINH THUAN COMPANY LIMITED ("Seller") and Mr./Mrs. THACH NGUYEN PHONG - Mr./Mrs. NGUYEN LE KIM NGAN ("Buyer"), the list of materials and equipment supplied for Resort Property is described as follows:

No.	ITEM	MATERIAL	SPECIFICATION	SUPPLIER/ BRAND
FLOOR				
1	All rooms inside the house	Unfinished reinforced concrete floor		
2	Balcony, terrace	Finished with anti-slip Porcelain tiles	According to design	Lola/Romantic/Kito /Overland or equivalent
3	Roof	Finished in accordance with architectural design	According to design	
WALLS				
4	External enclosing walls	Finished with exterior water-based paint	According to design	Nippon Paint/ Jotun or equivalent
5	Balcony railing (if any)	According to architectural design	According to design	Manufactured and installed by a domestic company
CEILING				
6	All rooms inside the house	Unfinished concrete ceiling		
7	Exterior area ceiling (if any)	Finished with exterior water-based paint	According to design	Nippon Paint/ Jotun or equivalent
DOORS AND WINDOWS				
8	Main entrance door at ground floor	Glass door with powder-coated aluminum frame or according to architectural design	According to design	Manufactured and installed by WSW/ Sinh Nam/ Tacheng or equivalent

No.	ITEM	MATERIAL	SPECIFICATION	SUPPLIER/ BRAND
9	Remaining doors, windows, external glass partitions	Glass doors/windows/external glass partitions with powder-coated aluminum frames or according to architectural design	According to design	Manufactured and installed by WSW/ Sinh Nam/ Tacheng or equivalent
EXTERIOR HOUSE DECORATION				
10	Mouldings / decorative cornices (if any)	According to architectural design	According to design	Manufactured and installed by a domestic company
YARD, FENCE				
11	Yard, Fence	Provided	According to design	
MECHANICAL AND ELECTRICAL SYSTEMS				
12	Power supply electrical system	According to MEP design	According to design	
13	Telephone and data system	According to MEP design	According to design	
14	Water supply system	According to MEP design	According to design	
15	Drainage system	According to MEP design	According to design	
16	Exterior decorative lighting (balcony, gate pillars, garden) (if any)	Provided	According to design	
17	Water meter and electricity meter box	Provided	According to design	

BUYER

[signed]

NGUYEN LE KIM NGAN

[signed]

THACH NGUYEN PHONG

REPRESENTATIVE OF THE SELLER

[signed]

PHUNG HAI DANG
Project Executive Director

APPENDIX 4

COMMON AREAS AND PRIVATE AREAS

(Attached to the Sale and Purchase Agreement for houses/construction works No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 01 June 2024)

1. The Buyer shall have separate ownership of the Resort Property and the technical equipment for exclusive use attached to the Resort Property as stipulated in Appendix 3 attached to this Agreement.

2. The Buyer and the Seller shall have joint ownership of the utilities for technical infrastructure and transportation, including the wastewater treatment plant, domestic water pumping station, and internal roads of the Resort Property Area.

3. The Seller shall have separate ownership of the remaining land area portions and equipment of the Resort Property Area.

4. The Buyer shall have the right to shared use of the Common Areas free of charge, including:

- (a) Green park area;
- (b) Club house area;
- (c) Landscape lake (if any);
- (d) Other Common Areas free of charge as determined by the Seller.

5. The Buyer shall have the right to shared use of the Common Areas subject to fees as determined by the Seller.

BUYER	**REPRESENTATIVE OF THE SELLER**
[signed] THACH NGUYEN PHONG [signed] NGUYEN LE KIM NGAN	[signed] PHUNG HAI DANG Project Executive Director

APPENDIX 5

SALE PRICE AND PAYMENT SCHEDULE

(Attached to the Sale and Purchase Agreement for houses/construction works No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 10 June 2024)

1. The Sale Price of the Resort Property is 11.906.428.652 VND (In words: Eleven billion nine hundred six million four hundred twenty-eight thousand six hundred fifty-two dong only), of which:

(a) The Sale Price of the Resort Property inclusive of land lease and exclusive of value added tax is 10.824.026.047 VND (In words: Ten billion eight hundred twenty-four million twenty-six thousand forty-seven dong only);

(b) The value added tax of the Resort Property is 1.082.402.605 VND (In words: One billion eighty-two million four hundred two thousand six hundred five dong only). For clarification, value added tax is calculated directly on the Sale Price of the Resort Property exclusive of value added tax at the tax rate provided by law at the time of signing this Agreement (hereinafter referred to as VAT).

2. The Sale Price of the Resort Property may be adjusted upon the occurrence of at least one of the following cases:

(a) The Parties agree that the Total Usable Floor Area may differ (increase or decrease) in reality based on measurement on the Handover Date. If the actual Total Usable Floor Area differs within 2% (two percent) compared to the Total Usable Floor Area stipulated in Appendix 1 of this Agreement, the Parties shall not adjust the Sale Price of the Resort Property. If the actual Total Usable Floor Area differs by more than 2% (two percent) compared to the Total Usable Floor Area stipulated in Appendix 1 of this Agreement, then the Sale Price of the Resort Property exclusive of VAT shall be adjusted upward (+) or downward (-) correspondingly by the difference in total usable floor area multiplied (x) by 12.400.000 VND/m2.

(b) The Parties agree that the Total Land Use Area may differ (increase or decrease) in reality based on measurement on the Handover Date. If the actual Total Land Use Area differs within 2% (two percent) compared to the Total Land Use Area stipulated in Article 1 of this Agreement, the Parties shall not adjust the Sale Price of the Resort Property. If the actual Total Land Use Area differs by more than 2% (two percent) compared to the Total Land Use Area stipulated in Article 1 of this Agreement, then the Sale Price of the Resort Property exclusive of VAT shall be adjusted upward (+) or downward (-) correspondingly by the difference in total land use area multiplied (x) by 37.577.186 VND/m2.

(c) In the event the VAT changes due to changes in the VAT rate under the law from the effective date of this Agreement until the handover date of the Property, the Parties shall execute an appendix to adjust the Sale Price of the Resort Property accordingly.

(d) Payment of the value of the difference (if any) resulting from (i) the increase/decrease of the Total Land Use Area and/or the Total Usable Floor Area and/or (ii) the change in the VAT rate under Item 2 of this Appendix shall be made by the Buyer pursuant to the Seller's notice.

3. For avoidance of doubt, for the purposes of Items 2(a) and 2(b) above, the Total Usable Floor Area and Total Land Use Area difference shall mean the portion of area actually exceeding 2% (two percent) compared to the Total Usable Floor Area or Total Land Use Area.

When comparing the Total Usable Floor Area and the Total Land Use Area, the Parties must use the same measurement method. The actual Total Usable Floor Area and the actual Total Land Use Area are the areas mutually agreed by the Parties and recorded in the Handover Minutes.

4. Based on the capabilities and needs of the Buyer, the Parties agree the payment schedule for the Sale Price of the Resort Property as follows:

Payment installment	**Payment rate (%/Sale Price of the Resort Property)**	**Amount payable excluding VAT (dong)**	**Corresponding VAT (dong)**	**Total amount payable including VAT (dong)**	**Payment deadline**
1	30.00	3.247.207.814	324.720.781	3.571.928.595	Date of signing this Agreement
2	40.00	4.329.610.419	432.961.042	4.762.571.461	Within 10 (ten) days from the next signing date of the Agreement (the right to a 10-day late payment grace period as per Article 11.1 of the Agreement shall not be applied)

Payment installment	Payment rate (%/Sale Price of the Resort Property)	Amount payable excluding VAT (dong)	Corresponding VAT (dong)	Total amount payable including VAT (dong)	Payment deadline
3	25.00	2.706.006.512	270.600.651	2.976.607.163	Within 05 (five) days prior to the expected handover date of the Resort Property as per the notice letter.
4	5.00	541.201.302	54.120.131	595.321.433	Within 05 (five) days prior to the expected handover date of the Certificate as per the notice letter. (The remaining VAT of 54.120.131 VND shall be paid simultaneously with the above handover installment)
TOTAL		10.824.026.047	1.082.402.605	11.906.428.652	

BUYER

[signed]
THACH NGUYEN PHONG
[signed]
NGUYEN LE KIM NGAN

REPRESENTATIVE OF THE SELLER

[signed]
PHUNG HAI DANG
Project Executive Director

APPENDIX 6

OPERATION AND MANAGEMENT FEE

(Attached to the house/construction sale and purchase contract No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 10 June 2024)

The Buyer shall be responsible for payment of the Operation and Management Fee according to the provisions as follows:

1. The Operation and Management Fee (excluding VAT) is prescribed by the Seller and is calculated per square metre of Total Land Use Area. Details of this fee level will be notified in writing by the Seller to the Buyer at the time of invitation to receive handover; the expected fee level is from 16,000 to 20,000 VND/m2/month.

This fee may be adjusted by agreement with the management and operation unit on a reasonable basis, appropriate to the actual circumstances at each time and shall be notified in writing by the Seller to the Buyer prior to application.

The Buyer is obliged to pay 03 (three) months of the initial Operation and Management Fee into the Seller's account within 05 (five) days before the Handover Date as notified by the Seller. The remaining Operation and Management Fee for the first year shall be paid periodically quarterly (every 03 months) on the first 05 (five) days of each quarter.

2. The Operation and Management Fee shall be paid into the Seller's management and operation expense account as notified by the Seller.

3. The Operation and Management Fee shall be used to carry out the works and services of managing and operating the Resort Real Estate Area including but not limited to security services, environmental sanitation, pest control, gardening, care of green trees, cleaning of public areas, fire-fighting equipment, electricity and water costs for the Common Area and wastewater treatment costs.

BUYER	**SELLER'S REPRESENTATIVE**
[signed]	[signed]
THACH NGUYEN PHONG	PHUNG HAI DANG
[signed]	Project Executive Director
NGUYEN LE KIM NGAN	

APPENDIX 7

REGULATIONS OF THE RESORT REAL ESTATE AREA

(Attached to the house/construction sale and purchase contract No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 10 June 2024)

PART 1: DEFINITIONS

Unless the context requires otherwise, the following capitalised terms in the Regulations of the Resort Real Estate Area shall have the corresponding meanings as follows:

Contract : means the sale/purchase/rental contract for the house/construction works and all appendices attached thereto as well as all written amendments and supplements to the contract made and signed by the Investor and the Owner during the performance of the contract.

Project : means the real estate project of the Investor named Toh hop Khu du lich Thung Valley Dai Duong located at Tien Thanh Commune, Phan Thiet City.

Owner : means one or more persons who have legal ownership rights/legal lawful use rights to the Resort Real Estate within the Resort Real Estate Area or the buyer/lessee named in the Contract

Occupant : means the Owner, members of the Owner's family, the Tenant, members of the Tenant's family, domestic helpers and any person entitled to reside in the Resort Real Estate.

Tenant : means one or more persons who have signed a long-term lease contract (lease term of 6 months or more) of the Resort Real Estate with the Owner.

Guest : means any person present in the Resort Real Estate Area invited by the Owner/ Tenant/ Occupant.

Investor : means the capital owner or the organisation, individual assigned to manage and use the capital to implement the investment project for construction of the Resort Real Estate.

Resort Real Estate : means including resort villas, shophouses and other resort real estates of the Project constructed by the Investor for sale/long-term lease, details as stipulated in this Contract.

Real Estate Area : means the area including the Resort Real Estate of the Project.

APPENDIX 8

(Attached to the house/construction sale and purchase contract No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 10 June 2024)

This Appendix ("Appendix") is made on 10 June 2024, by and between the following parties:

DELTA-VALLEY BINH THUAN COMPANY LIMITED

Head office address : Hon Gio - Thuan Quy Street, Thon Tien Hoa, Tien Thanh Commune, Phan Thiet City, Binh Thuan Province

Contact address : 65 Nguyen Du, Ben Nghe Ward, District 1, Ho Chi Minh City, Vietnam

Telephone : 1900636666

Account number (VND) : 3171157970066 at Military Commercial Joint Stock Bank (MB) - Bac Sai Gon Branch

Business registration number: 3400573917

Representative : Mr PHUNG HAI DANG

Position : Project Executive Director

Pursuant to Power of Attorney No.: 07/2024-UQ-DVBT dated 29 December 2023

(Hereinafter referred to as "Seller" or "Investor")

And

Mr./Ms : THACH NGUYEN PHONG

Citizen identity card / passport no./ID card: 079093015131 Issued date : 27 November 2021 Issued at : Department of Police for Administrative Management of Social Order

Expiration date : 05 April 2033

Mr./Ms : NGUYEN LE KIM NGAN

ID card/passport/CCC D : 079195000613 Issued date: 23 January 2022 Issued at: Department of Police for Administrative Management of Social Order

Expiration date : 12 January 2035

(Hereinafter referred to as "Buyer")

(The Seller and the Buyer hereinafter jointly referred to as the "Parties" and individually as a "Party", to be understood as applicable)

CONSIDERING:

A. The Parties have entered into the house/construction sale and purchase contract No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 10 June 2024, and the attached appendices ("Contract");

B. Based on the needs and actual wishes of the Parties in performing the Contract.

THEREFORE, NOW, the Parties agree to prepare and sign this Appendix to amend and supplement some contents of the Contract as follows:

ARTICLE 1. AMENDED AND SUPPLEMENTED CONTENTS

The Parties agree to amend Item 4 of Appendix 5 - Sale price and payment schedule attached to the Contract as follows:

"4. Based on the capability and needs of the Buyer, the Parties agree the payment schedule of the Sale Price of the Resort Real Estate as follows:

Installment	**Payment ratio (%/Sale Price of the Resort Real Estate)**	**Payment amount excluding VAT (VND)**	**Corresponding VAT (VND)**	**Total payment amount including VAT (VND)**	**Payment deadline**
1	30.00	3,247,207,814	324,720,781	3,571,928,595	Immediately after signing the Contract
2	43.44	4,702,449,339	470,244,934	5,172,694,273	Within 10 (ten) days from the day following the signing date of the Contract (The right of late payment of 10 days specified in Clause 11.1 of the Contract shall not be applied)

3	21.56	2,333,167,592	233,316,759	2,566,484,351	Within 05 (five) days before the expected handover date of the Resort Real Estate as notified by letter.
4	5.00	541,201,302	54,120,131	595,321,433	Within 05 (five) days before the expected issuance date of the Certificate as notified by letter. (The remaining VAT of 54,120,131 VND will be paid at the same time as the aforementioned Handover installment)
TOTAL	**100.00**	**10,824,026,047**	**1,082,402,605**	**11,906,428,652**	

For the avoidance of doubt, in the event that any content of Article 1 of this Appendix cannot be implemented without fault of the Parties, the Parties agree to terminate performance of payment in accordance with the schedule stipulated in Article 1 of this Appendix. Accordingly, the Buyer shall proceed to make payments according to the Sale Price of the Resort Real Estate and the payment schedule specified in Appendix 5 attached to the Contract. Any amount paid by the Buyer in excess of the payment schedule stipulated in Appendix 5 attached to the Contract shall not be refunded to the Buyer but shall be deemed as a withholding amount (security deposit) to secure payment of subsequent installments in accordance with Appendix 5 attached to the Contract and shall be applied against subsequent installments as stipulated in Appendix 5 attached to the Contract.

ARTICLE 2: GENERAL PROVISIONS

2.1. This Appendix is governed by and construed in accordance with the laws of Vietnam.

2.2. This Appendix is executed on the basis of voluntariness and equality. The Parties warrant that they have the authority and capacity under this Appendix and the law to sign and perform this Appendix.

2.3. In this Appendix, capitalised words and phrases shall have the meanings as defined in the Contract, unless the context requires a different interpretation.

2.4. This Appendix shall take effect from the date of signing by the Parties and is an integral part of the Contract. Matters not stipulated in this Appendix shall be governed by the provisions of the Contract and applicable law.

2.5. From the effective date of this Appendix, except for the contents amended and supplemented herein, the remaining contents of the Contract shall continue to be in force between the Parties. In the event of any inconsistency between this Appendix and the Contract with respect to the same matter, the provisions of this Appendix shall prevail.

2.6. In the event that any clause and/or provision of this Appendix is determined by a competent State authority to be invalid or without legal effect or unenforceable, such determination shall not affect the validity of the remaining clauses and/or provisions; the Parties shall agree to amend such clause or provision to conform with the intent of the Parties and the law as soon as possible. The Parties shall continue and shall not interrupt the performance of other valid clauses and provisions of this Appendix.

2.7. This Appendix is executed in 03 (three) original copies in Vietnamese, each bearing the original signature of the authorised representative of each Party and having equal legal validity. The Seller keeps 02 (two) copies, the Buyer keeps 01 (one) copy as the basis for implementation.

BUYER/BUYER'S REPRESENTATIVE	**SELLER'S REPRESENTATIVE**
[signed]	[signed]
THACH NGUYEN PHONG	PHUNG HAI DANG
NGUYEN LE KIM NGAN	Project Executive Director

APPENDIX 9

(Attached to the Sale and Purchase Contract for house/construction works No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 10 June 2024,...)

This appendix ("Appendix") is made on 10 June 2024 at Delta-Valley Binh Thuan Company Limited, between the Parties underwritten:

SELLER:

Company name	:	**DELTA-VALLEY BINH THUAN COMPANY LIMITED**
Business registration certificate number	:	3400573917
Legal representative/ by authorization	:	**Mr./Ms. PHUNG HAI DANG** Position: Project Executive Director
According to power of attorney document no.	:	07/2024-UQ-DVBT dated 29 December 2023
Citizen identification/ identity card number	:	001079010072 issued on 10 February 2020 at the Police Department for Administrative Management of Social Order
Head office address	:	Hon Gio - Thuan Quy Street, Tien Hoa Hamlet, Tien Thanh Commune, Phan Thiet City, Binh Thuan Province
Contact address	:	65 Nguyen Du Street, Ben Nghe Ward, District 1, Ho Chi Minh City, Vietnam
Telephone	:	1900636666
Bank account number	:	3171157970066 at Military Commercial Joint Stock Bank (MB)_ Bac Sai Gon Branch
Tax code	:	3400573917

BUYER:

Mr./Ms.	:	**THACH NGUYEN PHONG**
Citizen identification/ identity card number	:	079093015131 issued on : 27 November 2021 at : Police Department for Administrative Management of Social Order
Expiry date	:	05 April 2033
Mr./Ms.	:	**NGUYEN LE KIM NGAN**
ID/Passport/Citizen ID	:	079195000613 issued on: 23 January 2022 at: Police Department for Administrative Management of Social Order
Expiry date	:	12 January 2035

(The Seller and the Buyer are each referred to as a "Party" and together as the "Parties", as the context requires)

ON THE BASIS OF:

A. The Parties have entered into the Sale and Purchase Contract for house/construction works No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 10 June 2024, and its attached appendices ("Contract");
B. Pursuant to the actual needs and wishes of the Parties in performing the Contract;

THEREFORE, NOW, the Parties hereby agree to prepare and sign this Appendix to supplement the Contract with the following content:

Article 1. Supplement to the Contract as follows:

1.1. The Buyer understands and agrees that the Seller has the right to process the Buyer's personal data provided/collected in any form before or during the process when the Buyer chooses to purchase products at the Project through the Parties signing a deposit registration form to purchase real estate, deposit slip, Sale and Purchase Contract and/or other related documents ("Transaction") (including (i) non-sensitive personal data, (ii) sensitive personal data (if any)) ("Personal Data") for the purpose of performing this Transaction and/or for other purposes for the benefit of the Buyer, which are notified/disclosed by the Seller in any form (for example: website, email, message, ...) and the Seller shall be fully responsible to the law for this (hereinafter collectively referred to as the "Purpose").

For clarification, any information of any other individual(s) that the Buyer refers to or provides to the Seller before and during the performance of this Transaction, the Seller hereunder understands that the Buyer has obtained valid consent from such individual(s) for providing the said information for the Purpose and shall be responsible for the accuracy and completeness of such data.

1.2. For the Purpose under this Article, the Seller may directly perform or engage other third parties including but not limited to: affiliated companies, member companies, partners, agents, suppliers, contractors, consultants and/or other third parties engaged by the Seller to provide goods/services in support of business operations or to perform the Seller's legal obligations,... to perform the processing of Personal Data. The Seller shall take all measures to require these third parties to commit to comply with data protection requirements as prescribed by law.

1.3. The Buyer understands that the processing of Personal Data is mandatory and necessary to perform the Purpose under this Article. In the event the Buyer withdraws consent, or has any request/activity that restricts the processing of Personal Data, the Buyer's requests may result in: (i) the Purpose not being fully implemented, (ii) depending on the case, may seriously affect the performance of this Transaction, (iii) or may be regarded as the Buyer's unilateral termination of the Transaction. In case this Transaction must be terminated due to the Buyer's withdrawal of consent or any request/activity restricting the processing of Personal Data, the Buyer agrees that the Seller has the right to process in accordance with Article 11.5 of this Contract.

1.4. For clarity, the withdrawal of consent or any request or activity restricting the processing of the Buyer's Personal Data (if any) does not affect the legality of the Seller's processing of the data prior to the Buyer's withdrawal of consent or request. The withdrawal of consent or any request or activity restricting the processing of Personal Data (if any) must be made in writing and sent to the Seller in accordance with Article 15 of this Transaction.

1.5. Personal Data will be retained for the period necessary to perform the Purpose under this Article, consistent with the agreement between the Parties. The Seller may retain Personal Data even after the Transaction has terminated to comply with legal requirements or to prevent fraud and/or respond to requests from competent authorities and/or perform the Seller's legal obligations under the law.

1.6. Regarding the collateralized asset mortgage transaction related to the Project pursuant to the agreement between the Seller and Military Commercial Joint Stock Bank (MB), the Seller ensures (i) the performance of obligations related to this transaction will not affect the Buyer's rights under this Contract and (ii) the Buyer has full rights under this Contract and the law, including but not limited to the right to dispose of and transfer the Resort Real Estate and to be issued the Certificate of Land Use Rights and/or Ownership of Housing and other assets attached to the land (Certificate).

1.7. The Buyer agrees and confirms that the Buyer has been provided by the Seller with full information of the Resort Real Estate and the Project. Accordingly, the Buyer (i) agrees and has no objection to the Seller's collateralized asset mortgage transactions as stated in Article 1.6 of this Appendix and (ii) agrees to purchase the Resort Real Estate that the Seller is not required to release the aforementioned collateralized assets.

Article 2. General provisions:

2.1. This Appendix is governed by and construed in accordance with the laws of Vietnam.

2.2. This Appendix is executed on the basis of voluntariness and equality. The Parties warrant that they have the authority and capacity under this Appendix and the law to sign and perform this Appendix.

2.3. In this Appendix, capitalized words and phrases shall have the meanings as defined in the Contract, unless the context requires otherwise.

2.4. This Appendix shall take effect from the date of execution by the Parties and shall be an integral part of the Contract. Matters not stipulated in this Appendix shall be governed by the Contract and applicable laws.

2.5. From the effective date of this Appendix, except for the contents amended and supplemented in this Appendix, the remaining contents of the Contract shall continue to be effective and binding on the Parties. In the event of inconsistency or conflict between the same content of this Appendix and the Contract, the content of this Appendix shall prevail.

2.6. In the event any provision and/or regulation in this Appendix is declared null and void or without legal effect by a competent State authority, it shall not affect the validity of the remaining provisions and/or contents; the Parties shall agree to amend such provision or regulation to conform to the Parties' intent and the law as soon as practicable. The Parties shall continue and not interrupt the performance of other provisions and regulations that remain valid in this Appendix.

2.7. This Appendix is made into 03 (three) original copies in Vietnamese with each original signed by the authorized representative of each Party and having equal validity, the Seller retains 02 (two) copies, the Buyer retains 01 (one) copy for implementation.

In case the Buyer is a Vietnamese person residing abroad or is a foreign individual/organization, this document shall be prepared in an additional 02 (two) original copies in English, each Party keeps 01 (one) copy. In the event of any discrepancy between the Vietnamese version and the English version, the Vietnamese version shall prevail.

BUYER/BUYER'S REPRESENTATIVE *(Sign, print full name and seal)*		**SELLER'S REPRESENTATIVE** *(Sign, print full name and seal)*
[signed]	*[signed]*	*[signed]*
Nguyen Le Kim Ngan	**THACH NGUYEN PHONG**	**COMPANY LIMITED DELTA - VALLEY BINH THUAN** **PHUNG HAI DANG** Project Executive Director

APPENDIX 10

(Attached to the Sale and Purchase Contract for house/construction works No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 10 June 2024,...)

This appendix ("Appendix") is made on 10 June 2024, at Delta-Valley Binh Thuan Company Limited, between the Parties underwritten:

SELLER OF HOUSE/CONSTRUCTION WORKS:

Company name	:	**DELTA-VALLEY BINH THUAN COMPANY LIMITED**
Business registration certificate number	:	3400573917
Legal representative/ by authorization	:	**Mr./Ms. PHUNG HAI DANG** Position: Project Executive Director
According to power of attorney document no.	:	07/2024-UQ-DVBT dated 29 December 2023
Citizen identification/ identity card number	:	001079010072 issued on 10 February 2020 at the Police Department for Administrative Management of Social Order
Head office address	:	Hon Gio - Thuan Quy Street, Tien Hoa Hamlet, Tien Thanh Commune, Phan Thiet City, Binh Thuan Province
Contact address	:	65 Nguyen Du Street, Ben Nghe Ward, District 1, Ho Chi Minh City, Vietnam
Telephone	:	1900636666
Bank account number	:	3171157970066 at Military Commercial Joint Stock Bank (MB)_ Bac Sai Gon Branch
Tax code	:	3400573917

(Hereinafter referred to as the "Seller"),

And:

BUYER OF HOUSE/CONSTRUCTION WORKS:

Mr./Ms.	:	**THACH NGUYEN PHONG**
Citizen identification/ identity card number	:	079093015131 issued on : 27 November 2021 at : Police Department for Administrative Management of Social Order
Expiry date	:	05 April 2033
Mr./Ms.	:	**NGUYEN LE KIM NGAN**
ID/Passport/Citizen ID	:	079195000613 issued on: 23 January 2022 at: Police Department for Administrative Management of Social Order
Expiry date	:	12 January 2035

(Hereinafter referred to as the "Buyer");

(The Seller and the Buyer hereinafter collectively referred to as the "Parties" and individually as a "Party", as the context requires)

CONSIDERING:

- The Parties have entered into the Sale and Purchase Contract for house/construction works No. NWP.5.5-2.28/2024/HDMB/DVBT-TNP-NLKN dated 10 June 2024, and its attached appendices ("Contract");
- Pursuant to the actual needs and wishes of the Parties in performing the Contract.

THEREFORE, NOW, the Parties agree to prepare and sign this Appendix to amend and supplement certain contents of the Contract as follows:

Article 1. Golf course benefit package

1.1. Conditions for applying the Benefit Package:

The Seller commits that the Buyer shall enjoy benefits equivalent to the benefits of a PGA Garden golf club member under the Ocean Valley Tourism Complex Project for a single term of 35 years ("Benefit Package") when the Buyer fully meets the following conditions:

(a) Completing the signing of the Contract and/or other documents related to the Resort Real Estate as required by the Seller and having paid in full and on time the Phase 1 Sale Price of the Resort Real Estate as stipulated in the Contract;

(b) Fully complying with the Seller's regulations, instructions and/or the club's rules, regulations and policies during the use of the Benefit Package.

1.2. Content of the Benefit Package:

(a) The Buyer shall enjoy regimes and rights equivalent to the benefits granted to a 35 (thirty-five) year membership of the Club.

(b) For clarification, (i) the Buyer must still pay all actual costs incurred during golf play and/or use of other services at the Club, other service usage fees as prescribed by the Club at each time; and (ii) this Benefit Package shall be maintained until the end of 2025, from 2026 onwards, the Buyer shall pay the fees prescribed by the Club to maintain the Benefit Package rights.

(c) The Benefit Package shall be valid for use as notified by the Seller and/or the Club.

(d) The Parties agree that the content of the Benefit Package may change in accordance with the Club's policies, legal regulations and/or other objective reasons. In the event of such changes, the Seller commits that the Buyer shall still enjoy rights of equivalent value to the committed Benefit Package above. In such case, the Seller shall notify the Buyer at least 30 (thirty) days prior to the effective date of such changes (if any).

(e) The Buyer commits to fully perform financial obligations arising in relation to the Benefit Package in accordance with the law (if any).

(f) The Buyer has the right to transfer the rights under the Benefit Package to another person in accordance with the procedures and regulations of the Club. The transfer must be based on the pricing framework and transfer costs prescribed by the Club. For clarification, the Buyer may transfer only when (i) all rights and obligations under the Contract are concurrently transferred with the transfer of the Benefit Package rights; (ii) the Seller and/or the Club has notified that the Seller has consented to the use of the Benefit Package; (iii) the Buyer has paid in full at least 50% of the Sale Price of the Resort Real Estate; (iv) fully performed financial obligations as required by law when performing the transfer, and shall be responsible for paying taxes, fees and charges arising in relation to such transfer. The transferee shall enjoy the Benefit Package rights for the remaining corresponding term.

The Buyer commits that the transferee shall have no other claims and/or complaints, claims, disputes against the Seller related to the Benefit Package under this Appendix. Any disputes, claims, complaints (if any) shall be resolved between the Buyer and the transferee.

1.3. In case the Buyer violates any provision of the Contract or the Buyer terminates the Contract prior to the maturity, the Seller shall reclaim the Benefit Package and the Buyer shall pay the Seller the value of the Benefit Package corresponding to the time the Buyer has used from the time the Seller reclaims it. The Buyer is responsible for paying these costs as notified in writing by the Seller. The Buyer commits not to have any claims and/or complaints, claims, disputes against the Seller related to the Benefit Package that is reclaimed in accordance with this Article.

Article 2. General provisions

2.1. This Appendix is governed by and construed in accordance with the laws of Vietnam.

2.2. This Appendix is executed on the basis of voluntariness and equality. The Parties warrant that they have the authority and capacity under this Appendix and the law to sign and perform this Appendix.

2.3. In this Appendix, capitalized words and phrases shall have the meanings as defined in the Contract, unless the context requires otherwise.

2.4. This Appendix shall take effect from the date of execution by the Parties and shall be an integral part of the Contract. Matters not stipulated in this Appendix shall be governed by the Contract and applicable laws.

2.5. From the effective date of this Appendix, except for the contents amended and supplemented in this Appendix, the remaining contents of the Contract shall continue to be effective and binding on the Parties. In the event of inconsistency or conflict between the same content of this Appendix and the Contract, the content of this Appendix shall prevail.

2.6. In the event any provision and/or regulation in this Appendix is declared null and void or without legal effect by a competent State authority, it shall not affect the validity of the remaining provisions and/or contents; the Parties shall agree to amend such provision or regulation to conform to the Parties' intent and the law as soon as practicable. The Parties shall continue and not interrupt the performance of other provisions and regulations that remain valid in this Appendix.

2.7. This Appendix is made into 03 (three) original copies in Vietnamese with each original signed by the authorized representative of each Party and having equal validity, the Buyer retains 02 (two) copies, the Buyer retains 01 (one) copy for implementation.

In case the Buyer is a Vietnamese person residing abroad or is a foreign individual/organization, this document shall be prepared in an additional 02 (two) original copies in English, each Party keeps 01 (one) copy. In the event of any discrepancy between the Vietnamese version and the English version, the Vietnamese version shall prevail.

BUYER/BUYER'S REPRESENTATIVE *(Sign, print full name and seal)*		**SELLER'S REPRESENTATIVE** *(Sign, print full name and seal)*
[signed]	*[signed]*	*[signed]*
		PHUNG HAI DANG Project Executive Director
NGUYEN LE KIM NGAN	**THACH NGUYEN PHONG**	